



DECISION

Complaint No. : POS/3274/2017/ADV-S

Name and address of the complainant : Mr. Muhammad Jamil,
H. No. 01, Sector 13-E, Orangi Town, Karachi.

Name of the Agency Complained against : Karachi Water & Sewerage Corporation/ACE,

Name & Designation of Investigating Officer : Syed Hashim Raza Zaidi,
Advisor-S.

Subject : **DELAY IN TAKING LEGAL ACTION AGAINST SYED MUHAMMAD ADNAN ZAIDI, SUB-ENGR, KW&SC WHO ALLEGEDLY TOOK RS. 330,000/= FROM THE COMPLAINANT AND OTHERS FRAUDULENTLY TO MAKE ARRANGEMENTS FOR SUPPLY OF WATER BUT FAILED TO DO SO AND ON DEMAND OF RETURN OF AMOUNT ISSUED TWO CHEQUES WHICH WERE NOT ENCASHED ETC.**

THE COMPLAINT:

Mr. Muhammad Jamil S/o. Kareem Bux filed a complaint on 09.11.2017 stating that he and two hundred other poor laborers were residing in Sector 12-L and 13-E Orangi Town, Karachi. They are facing problems of non-availability of water since last 15 years. They contacted Mr. Syed Muhammad Adnan Zaidi, Sub-Engineer of Karachi Water & Sewerage Corporation for the resolution of his problem. He demanded Rs. 5000/= per house for the supply of water for all houses. The complainant collected amount of Rs. 330,000/= which was given to the above said employee of KW&SB. He enclosed a copy of agreement of Rs. 255,000/- for the above said work as evidence. Mr. Adnan Zaidi has failed to complete the work in stipulated time, resultantly the residence demanded back their paid amount. Mr. Adnan Zaidi gave two cheques viz (1) Cheque No. 0292915 dated 05.11.2016 of Rs. 150,000/= and (2) cheque No. 029217 dated 08.01.2017 of Rs. 150,000/= in the name of his son Mr. Muhammad Shakeel, which were not cashed as the subject account was closed. The complainant also approached the Chairman, Anti-Corruption Establishment Sindh on 19.06.2017 in this regard but to no avail. He, therefore, solicited our intervention in the matter.

PROCEEDINGS:

2. The case was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date) and matter was referred to the concerned officers for submission of report. In response, the Additional Director (Legal), ACE, Head Quarter, Karachi in his letter dated 26.12.2018 informed that subject matter was placed before ACC-II on 20.12.2018 and assigned to Circle Officer, ACE West, Karachi to conduct an open enquiry with the direction to furnish report within shortest possible time.

3. Subsequently the Enquiry Officer, ACE, District West, Karachi in his enquiry report dated 28.05.2019 informed that during the enquiry it had come on surface that an agreement was made between the complainant and alleged person for laying of water supply line and connections to the area. The Enquiry Officer also added that during the enquiry it also come to surface that pipes were placed at site for water connection but later on no progress was made in the matter and there was a dispute between applicants and Syed Adnan Zaidi in their private capacity. No evidence came on record regarding loss to national exchequer.

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4. Syed Adnan Zaidi, Sub-Engineer, KW&SB in his statements dated 03.02.2021 and 27.09.2021 stated that he signed an agreement of Rs. 250,000/= with the complainant Mr. Muhammad Jameel for the above said purpose and purchased the 400 feet water pipes of 6' of Rs. 194,000/= alongwith fare, which was placed at site and an amount of Rs. 70,000/= was given to the complainant before two witnesses Mr. Abdul Islam and Mr. Abdul Ghaffar. He also intimated that now he was posted in another Division.

5. The matter remained under correspondence with the KW&SC. Finally, Director Personnel, KW&SC vide his letter dated 27.01.2025 forwarded the Inquiry Report dated 29.03.2024 and informed that the complaint of Mr. Muhammad Jameel was referred to the then M.D. KW&SB with remarks that the instant matter was a dispute between the complainant and the alleged Syed Adnan Zaidi, in his private capacity and no any proof has come on record regarding loss to national exchequer.

6. A copy of the said Agency's report dated 27.01.2025 was sent to the complainant for his rejoinder vide this office letter dated 04.02.2025 followed by reminder dated 09.04.2025 but he failed to submit the same. The complainant was contacted on his given cell number, the complainant's son informed that his father has died some time ago.

FINDINGS:

7. I have examined the case and found that: -

The role of a government employee is restricted to the implementation and management of government policies. In this case, entering into private agreement with individuals for water supply by the Sub-Engineer, KW&SC, in exchange for consideration was indeed gross misconduct, making him liable for severe disciplinary action.

DECISION:

8. In view of the above and in exercise of powers vested to me under Section 11 of the Establishment of the Office of Ombudsman Sindh, Act 1991, I hereby direct the Chief Executive Officer, Karachi Water & Sewerage Corporation to take necessary action against Mr. Adnan Zaidi, Sub-Engineer as per service rules of KW&SC for the gross misconduct committed by him. A compliance report shall be submitted to this office in 30 days hereof.

9. The complaint stands disposed of accordingly.

Given under my hand and seal of this office.



Sd /-

(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh,
Karachi, dated: 11. Feb, 2026.